

with respect to the preferential rates referred to in that section as though those provisions were herein set out and in terms made applicable to the rates referred to in this section, with the substitution of the Lieutenant-Governor of the Isle of Man for the Board of Trade.

Short title.

6. This Act may be cited as the Isle of Man (Customs) Act, 1922.

CHAPTER 37.

An Act to amend the Naval Discipline Act.

[4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of s. 53 of
the Naval
Discipline
Act.

1. In paragraph (4) of section fifty-three of the Naval Discipline Act (which relates to the term of penal servitude which may be awarded) "three years" shall be substituted for "five years."

Amendment
of s. 58 of
the Naval
Discipline
Act.

2. Section fifty-eight of the Naval Discipline Act (which relates to the constitution of courts-martial) shall be amended as follows:—

In subsection (2) after the word "commander" there shall be inserted the words "lieutenant-commander."

In subsection (3) after the word "commanders" there shall be inserted the words "lieutenant-commanders."

In subsection (15) after the word "commander," wherever that word occurs, there shall be inserted the words "lieutenant-commander."

Amendment
of s. 60 of
the Naval
Discipline
Act.

3. In section sixty of the Naval Discipline Act (which relates to the times of sitting of courts-martial), for the words "A court-martial held in pursuance of this Act shall sit from day to day" there shall be substituted the words "A court-martial held in pursuance of this Act may, if it appears to the Court that an adjournment is desirable, be adjourned for a period

“ not exceeding six days, but except where such an adjournment is ordered shall sit from day to day.”

4. At the end of section eighty of the Naval Discipline Act, which relates to the removal of prisoners to asylums in the case of insanity, the following provision shall be inserted :

Amendment of s. 80 of the Naval Discipline Act.

“ This section shall not apply to persons imprisoned in England.”

5. Section eighty-six of the Naval Discipline Act (which defines certain terms) shall be amended as follows :—

Amendment of s. 86 of the Naval Discipline Act.

- (1) In the definition of “ officer,” after the words “ warrant officer” there shall be inserted the words “ other than a warrant officer, class II., of the Royal Marines.”
- (2) In the definition of “ superior officer,” for the word “ including” there shall be substituted the words “ warrant officers.”

6.—(1) After section ninety A of the Naval Discipline Act there shall be inserted the following new section :—

Provisions respecting naval officers and seamen in ships of self-governing Dominions.

“ 90B.—(1) Any person in or belonging to His Majesty’s Navy and any officer or man of the Royal Marines who, by order of the Admiralty or of the Commander in Chief or the Senior Naval Officer present on a foreign station, is serving in a ship of or belonging to the naval forces of a self-governing Dominion (provided such ship is not at the time placed at the disposal of the Admiralty), or in a naval establishment of a self-governing Dominion, or who is on board such ship or in such establishment as aforesaid awaiting passage or conveyance to any destination shall, for all purposes of command and discipline, be subject to the laws and customs for the time being applicable to the ships and naval forces of such self-governing Dominion.

“ (2) For the purposes of this section, the expression ‘ self-governing Dominion ’ includes the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, and Newfoundland.”

7. Section ninety-eight A of the Naval Discipline Act (which relates to the liability of seamen, &c. for the maintenance of wives and children) shall be amended as follows :—

Amendment of s. 98A of the Naval Discipline Act.

The following subsection shall be substituted for subsection (2):—

“(2) Where—

- (a) it appears to the satisfaction of the Admiralty or any person deputed by them for the purpose that a person subject to this Act has deserted or left in destitute circumstances, without reasonable cause, his wife or any of his legitimate children under fourteen years of age; or
- (b) any order or decree is made under any Act or at common law for payment by a man who is or subsequently becomes subject to this Act either of the cost of the maintenance of his wife or child, or of any bastard child of whom he is the putative father, or of the cost of any relief given to his wife or child by way of loan, and a copy of such order or decree is sent to the Admiralty or any person deputed by them for the purpose;

the Admiralty or the person so deputed may direct to be deducted from the pay of the person so subject to this Act, and to be appropriated towards the maintenance of his wife or children, or in liquidation of the sum adjudged to be paid by such order or decree, as the case may be, in such manner as the Admiralty or the person so deputed may think fit, a portion of such pay, at their or his discretion, but the amount deducted shall not exceed the amount fixed by the order or decree (if any), and shall not be a higher rate than hereinafter set out, namely—

- (i) in the case of a chief mechanic, chief artificer, chief shipwright, or chief petty officer mechanic, or a Warrant Officer (Class II.), a quartermaster-sergeant, a quartermaster-sergeant instructor, or a company sergeant-major in the Royal Marines—in respect of a wife or children four shillings a day and in respect of a bastard child three shillings a day;
- (ii) in the case of any other chief petty officer or a petty officer or of any other non-commissioned officer not below the rank of sergeant in the

Royal Marines—in respect of a wife or children three shillings a day and in respect of a bastard child two shillings a day ;

- (iii) in the case of any other naval rating, or soldier in the Royal Marines—in respect of a wife or children two shillings a day and in respect of a bastard child one shilling and sixpence a day :

“ Provided that no such deductions from pay in liquidation of a sum adjudged to be paid by an order or decree as aforesaid shall be ordered unless the Admiralty are, or the person deputed by them is, satisfied that the person against whom the order or decree was made has had a reasonable opportunity of appearing himself, or has appeared by a duly authorised legal representative, to defend the case before the court by which the order or decree was made, and a certificate, purporting to be a certificate of the commanding officer of the ship on which he was or is serving, or on the books of which he was or is borne, that the person has been prevented by the requirements of the service from attending at a hearing of any such case shall be evidence of the fact unless the contrary is proved.

“ Where any arrears have accumulated in respect of sums adjudged to be paid by any such order or decree as aforesaid whilst the person against whom the order or decree was made was serving under this Act, whether or not deductions in respect thereof have been made from his pay under this section, then after he has ceased so to serve an order of committal shall not be made in respect of those arrears unless the court is satisfied that he is able, or has, since he has ceased so to serve, been able to pay the arrears or any part thereof and has failed to do so.”

In subsection (3) for the words “the process may be served by being left with the Admiralty” there shall be substituted the words “the process may, after not less than three weeks’ notice to the Admiralty, be served by being sent to the Secretary of the Admiralty”; for the words “a sum of money” there shall be substituted the words “such sum of money if any”; for the word “sufficient” there shall be substituted the words “as may be fixed by the Admiralty as being necessary”; and the word “daily” shall be omitted.

At the end of the section the following new sub-section shall be added.

“(5) In this section the expression ‘pay’ includes all sums payable to a man in respect of his services other than allowances in lieu of lodgings, rations, provisions, and clothing.”

Printing and
construction
of Naval
Discipline
Act.

8. The following Part shall be inserted in the Naval Discipline Act immediately after Part VII., and that Act shall have effect as if it had, when originally enacted, contained such a Part:—

“ PART VIII.

“ PRINTING CLAUSE.

“102.—(1) Every enactment and word which is directed by any Act amending this Act to be substituted for or added to any portion of this Act shall form part of this Act in the place assigned to it by the amending Act, and this Act and all Acts which refer thereto shall, after the commencement of the amending Act, be construed as if that enactment or word had been originally enacted in this Act in the place so assigned, and, where it is substituted for another enactment or word, had been so enacted in lieu of that enactment or word, and as if this Act had been enacted with the omission of any enactment or word which is directed by the amending Act to be repealed or omitted from this Act, and the expression ‘this Act’ shall be construed accordingly.

“(2) A copy of this Act with every such enactment and word inserted in the place so assigned, and with the omission of any portion of this Act directed by any such amending Act as aforesaid to be repealed or omitted from this Act, shall be prepared and certified by the Clerk of the Parliaments and deposited with the rolls of Parliament, and His Majesty’s printers shall print in accordance with the copy so certified all copies of this Act which are printed after the commencement of such amending Act.

“(3) A reference in any enactment, Order in Council, or other document, to the Naval Discipline

Act shall, unless the context otherwise requires, be construed as a reference to this Act as amended by any enactment for the time being in force."

9.—(1) This Act may be cited as the Naval Discipline Act, 1922. Short title, commencement, and repeal.

(2) This Act shall come into operation at the expiration of one month after the passing thereof.

(3) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

SCHEDULE.

Section 9.

Session and Chapter.	Short-Title.	Extent of Repeal.
47 & 48 Vict. c. 39.	The Naval Discipline Act, 1884.	Section seven.
9 Edw. 7. c. 41.	The Naval Discipline Act, 1909.	Section two.
5 & 6 Geo. 5. c. 30.	The Naval Discipline Act, 1915.	Section sixteen.
5 & 6 Geo. 5. c. 73.	The Naval Discipline (No. 2) Act, 1915.	Section five.
7 & 8 Geo. 5. c. 34.	The Naval Discipline Act, 1917.	Section two.
7 & 8 Geo. 5. c. 51.	The Air Force (Constitution) Act, 1917.	In section seven, the words "and " section two of the Naval " Discipline Act, 1917 (which " relates to the printing and " construction of the Naval " Discipline Act), shall apply " to the amendments of the " Naval Discipline Act made " by this Act in like manner " as it applies to the amend- " ments thereof made by this " Act."